

Luis Reyes v. Michael Laws, et al., 25CV-0325

**Hearing: (1) Plaintiff's Motion to Compel Further Responses to Requests for Production of Documents, Set One
(2) Azteca's Motion for Judgment on the Pleadings**

Date: July 15, 2026

On May 19, 2025, Luis Reyes (Plaintiff) filed this action against Pacific Gas and Electric Company (PG&E), Azteca Builders (Azteca), and Michael and Aimee Laws. On November 6, 2025, Plaintiff filed amendments to the complaint substituting Randolph Harrell for Doe 1 and Hetty Harrell for Doe 2.

The complaint alleges that on or about November 15, 2023, Plaintiff sustained severe and permanent injuries, "after the ladder he was carrying contacted a high voltage, uninsulated power line that had been left dangerously low over an active construction site." (Cmp., ¶ 1.) The complaint alleges three causes of action for (1) negligence; (2) premises liability; and (3) negligence per se.

Now before the Court are two motions.

- Plaintiff's motion to compel further responses from PG&E to requests for production of documents; and
- Azteca's motion for judgment on the pleadings.

Both motions are opposed.

I. PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES FROM PG&E TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE

Plaintiff moves pursuant to Code of Civil Procedure sections 2031.310 and 2031.320, to compel further responses from PG&E to Request for Production of Documents (RFP) No. 33, as well as monetary sanctions in the amount of \$6,735.00.

PG&E opposes the motion. PG&E contends its objections are valid and code-compliant under Code of Civil Procedure section 2031.210, subdivision (a)(3); its partial response is substantive and not evasive; and Plaintiff has not shown good cause for statewide, all-cause incident discovery. PG&E argues that "RFP No. 33 seeks irrelevant, overbroad prior-incident discovery untethered to the condition at issue." (Opp., p. 8, ll. 2-3.)

The motion is granted in part.

A. Meet and Confer

A motion to compel further response to a demand for inspection shall be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(2).) A meet and confer declaration in support of a motion shall

state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040, subd. (a).)

Plaintiff's counsel found PG&E's responses to be deficient and sent PG&E's counsel a meet and confer email on February 5, 2026. (Declaration of Kenneth Melrose (Melrose Dec.), ¶ 4.) The parties met and conferred by telephone on February 12, 2026. (*Id.*, ¶ 5.) Plaintiff sent a follow up correspondence on February 20, 2026. (*Id.*, ¶ 6, Ex. C.) The parties exchanged further emails regarding the "breadth of [RFP] No. 33." (*Ibid.*) While PG&E served amended responses on February 25, 2026, the parties did not come to an agreement regarding RFP No. 33.

The Court finds the parties' meet and confer efforts sufficient.

B. Legal Standard

A party may bring a motion to compel further responses requests for production of documents, if it finds the responses are evasive, incomplete, or an objection to a response is made without merit or is too general. (Code Civ. Proc., § 2031.310, subd. (a).)

A motion to compel further responses to requests for production requires the moving party to state "specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc, § 2031.310, subd. (b)(1).) To establish good cause, the moving party must demonstrate relevance and specific facts justifying discovery. (See *Kirkland v. The Superior Court of Los Angeles County* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production "is met simply by a fact-specific showing of relevance." (*TBG Insurance Services Corporation v. The Superior Court of Los Angeles County* (2002) 96 Cal.App.4th 443, 448.) Once good cause is established, the responding party has the burden to justify any objections. (*Kirkland v. The Superior Court of Los Angeles County*, at p. 98.)

C. Discussion

On September 16, 2025, Plaintiff served RFP, Set One on PG&E. (Melrose Dec., ¶ 2, Ex. A.) Plaintiff received PG&E's responses on December 19, 2025. (*Id.*, ¶ 3, Ex. B.)

Plaintiff seeks further responses to RFP No. 33, which states:

All DOCUMENTS that RELATE TO YOUR COMMUNICATIONS, policies, directives, internal databases, logs, or incident tracking systems reflecting power line contacts, ladder contacts, or electrocution incidents in the ten (10) years prior to the INCIDENT.

(Pl. Sep. Stmt, p. 2, ll. 7-11.)

PG&E's response to RFP No. 33, provides as follows:

PG&E objects to this request on the grounds that the request is vague and

ambiguous, overbroad and unduly burdensome. PG&E objects to this request on the grounds that it seeks information that is irrelevant or is not reasonably calculated to lead to the discovery of admissible evidence. This request is not limited geographically, and PG&E's service area stretches from Eureka in the north to Bakersfield in the South, and PG&E has approximately 106,000 miles of electric distribution lines and approximately 18,000 circuit miles of transmission lines. <https://www.pge.com/en/about/company-information/company-profile.html>. Nor is the request limited by cause or severity of electrical contacts, and for this unlimited scope of incidents, the request seeks "all documents relating to [PG&E's] COMMUNICATIONS" for all of these incidents. Also sought are "policies, directives, internal databases, logs and internal tracking systems" for all of these electric incidents that are not limited in scope. PG&E objects to this request to the extent it calls for documents or information protected from disclosure by the attorney-client privilege and the attorney work product doctrine.

Subject to and without waiving these objections, PG&E's records do not reflect the occurrence of any line contacts, or other incidents, on the subject Templeton 2111 distribution circuit.

(Pl. Sep. Stmt, p. 2, ll. 12-28; p. 3, ll. 1-4.)

Plaintiff argues that PG&E's "response is evasive, incomplete and relies on boilerplate objections that are legally insufficient. Rather than respond to the request as written, Defendant has improperly limited its response to the single 'Templeton 2111 distribution circuit,' which appears nowhere in the request." (Not. Mot., p. 2, ll. 5-8.)

PG&E disagrees and contends that prior incidents are discoverable only to the extent they are meaningfully similar to the specific condition or mechanism at issue, and that the authorities on which Plaintiff relies, *Gilbert v. Pessin Grocery Co.* (1955) 132 Cal.App.2d 212, and *Hasson v. Ford Motor Co.* (1982) 32 Cal.3d 388, 404, recognize that limitation. PG&E argues that "courts admit prior-incident evidence only when it is anchored to the same location, condition, or mechanism, and exclude it otherwise. (See PG&E's Sep. Statement, Resp. to RFP No. 33.) Plaintiff's theory is irreducibly site-specific." (Opp., p. 8, ll. 19-22.)

Plaintiff responds that PG&E cannot avoid discovery by recharacterizing Plaintiff's claims as "site-specific" and shifting blame to third parties. Plaintiff argues that "PG&E's primary response is that a third party raised the grade under the line and therefore discovery should be limited to the subject circuit. That is not a basis to deny discovery. Plaintiff alleges that PG&E owned, controlled, and maintained the electrical infrastructure, that the line was dangerously low, energized, and uninsulated over an active construction site, that PG&E had actual or constructive notice, and that PG&E failed to raise, insulate, de-energize, mark, warn, cordon off, or otherwise protect workers. Plaintiff also alleges negligence per se based on violation of CPUC General Order 95 and related safety requirements." (Reply,

p. 2, ll. 11-17.)

Discovery is permitted as to any nonprivileged matter that is relevant to the subject matter involved in the pending action. (Code Civ. Proc., § 2017.010.) A matter is relevant, “if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Dev. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) The fact that evidence may not be admissible does not, by itself, render it undiscoverable. (Code Civ. Proc., § 2017.010.) Any doubt is generally resolved in favor of permitting discovery, particularly where the precise issues in the case are not yet clearly established. (*Colonial Life & Accident Insurance Company v. The Superior Court of Los Angeles County* (1982) 31 Cal.3d 785, 790, fn. 8.)

The Court finds Plaintiff has shown good cause for RFP No. 33 because the request seeks information bearing on, among other things, PG&E’s knowledge of the allegedly low-hanging powerline, failure to correct the allegedly dangerous condition, and whether similar incidents exist. Such discovery is reasonably calculated to lead to admissible evidence as to whether the incident was isolated or reflective of PG&E’s broader practices. (See *Genrich v. State of California* (1988) 202 Cal.App.3d 221, 227-228 [“As a general rule, ‘[w]here the circumstances are similar, and the happenings are not too remote in time, other accidents may be proved to show a defective or dangerous condition, knowledge or notice thereof, or to establish the cause of an accident. [Citations.]’ ... ‘The evidence must relate to accidents which are similar and which occur under substantially the same circumstances. [Citations.]’ ... ‘[T]he requirement of similarity may vary in strictness according to the purpose for which the evidence is introduced. Thus, if offered to show a dangerous condition of a particular thing—such as a step—the other accident must be connected in some way with that thing; but if offered only to show knowledge or notice of a dangerous condition, an accident at the place—a broader area—may be shown.’ [Citation.]”] (internal citations omitted); *Gilbert v. Pessin Grocery Co.*, *supra*, 132 Cal.App.2d 212, 217 [Evidence of previous accidents, may be admissible to show “(a) existence of defective or dangerous condition, (b) the cause of the subject accident, (c) knowledge or notice of the dangerous condition, (d) negligence in permitting that condition to continue.”].)

However, the Court also finds that PG&E’s overbreadth objection has some merit. The request as drafted is insufficiently particularized and not reasonably limited in scope. As PG&E noted in its meet-and confer correspondence dated May 4, 2026, the request is not limited to distribution-line vertical clearance incidents. (PG&E’s Exhibits, Ex. F, p. 2.) In addition, Plaintiff has not established good cause for the full ten-year period sought. Accordingly, Plaintiff’s motion to compel a further response to RFP No. 33 is denied as phrased, and granted in part. as follows:

Defendant shall produce ALL DOCUMENTS that RELATE TO YOUR COMMUNICATIONS, policies, directives, internal databases, logs, or incident tracking systems reflecting contacts involving an overhead line not in compliance with vertical clearance requirements, as set forth in California Public Utilities Commission (CPUC), General Order 95, during

the five (5) years prior to the INCIDENT.¹

The Court declines to impose a geographic limitation on this production. If PG&E withholds any responsive documents on the basis of privilege or work product, PG&E shall serve a privilege log compliant with Code of Civil Procedure section 2031.240, subdivision (c).

ORDER

For the foregoing reasons, the motion is granted in part. PG&E shall serve a code-compliant response and produce all responsive documents for RFP No. 33, within thirty (30) days, as limited in this ruling. The remainder of Plaintiff's motion is denied.

Given that the Court is granting the motion in part, and is limiting RFP No. 33, it declines to award monetary sanctions, finding them not to be in the interests of justice. (Code Civ. Proc., § 2031.310, subd. (h).)

II. AZTECA'S MOTION FOR JUDGMENT ON THE PLEADINGS

Azteca brings a motion for judgment on the pleadings under Code of Civil Procedure section 438, subdivision (c)(1)(B), on the grounds that the Court lacks jurisdiction and the complaint fails to state facts sufficient to constitute a cause of action because it does not allege facts demonstrating an exception to the workers' compensation exclusivity rule.

Plaintiff opposes the motion. Azteca's counsel declares that emails were sent to Plaintiff's counsel Kenneth Melrose on March 31, 2026, and April 15, 2026, for the purpose of meeting and conferring, but that Mr. Melrose did not acknowledge the emails or the phone message and did not respond. (Declaration of Shae Luchetta (Luchetta Dec.) ¶ 9, Ex. 5.)

For the reasons set forth below, the motion is granted with leave to amend.

A. Legal Standard

A defendant can move for judgment on the pleadings on the grounds that the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) A motion for judgment on the pleadings is equivalent to a demurrer and the rules governing demurrers apply; defects must be disclosed on the face of the pleadings or by matters that can be judicially noticed. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999; *Templo v. State of Calif.* (2018) 24 Cal.App.5th 730, 735.)

In considering a motion for judgment on the pleadings, the court treats the pleadings as

¹ This language was drafted considering the parties' meet and confer discussions on the issue. (See Exhibit C in support of Plaintiff's Motion, at pdf p. 65 [email on 2/20/26 at 1:44 p.m.] – pdf p. 66.)

admitting all of the material facts properly pleaded, but not any contentions, deductions or conclusions of fact or law contained therein. (*Tarin v. Lind* (2020) 47 Cal.App.5th 395, 403–404.)

B. Azteca’s Request for Judicial Notice

Azteca asks this Court to take judicial notice of documents pursuant to Evidence Code section 452, subdivision (h), which it contends are related to Plaintiff’s workers’ compensation claim, *inter alia*, 1) California Workers’ Compensation Coverage Inquiry Report (Request for Judicial Notice (RJN), Ex. 3); and 2) Screen shot from the Workers’ Compensation Court’s online portal for the Division of Workers’ Compensation (RJN, Ex. 4).

Judicial Notice may be taken of “[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code, § 452, subd. (h).) “Although the *existence* of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable. [Citation.]” (*Fremont Indem. Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-14.)

Plaintiff opposes the Court taking judicial notice of the workers’ compensation documents. Plaintiff disputes that workers’ compensation benefits are being covered under a policy for Azteca Builders, but instead for Bahena Rubi, Sanchez & Jacob. (Melrose Dec., ¶ 3.) Plaintiff argues that “[f]ar from establishing worker’s compensation coverage for Azteca Builders, as Defendant claims, Defendant’s own materials actually *create* reasonable disputes concerning the identity of the insured employer, whether any workers’ compensation benefits were paid through coverage legally applicable to Azteca Builders itself, and whether Defendant is entitled to exclusive remedy protection. Those disputes cannot be resolved on the pleadings.” (Opp., p. 4, ll. 3-8.) Plaintiff argues that a motion for judgment on the pleadings tests the legal sufficiency of the pleadings and is not appropriate to resolve factual disputes.

While the Court takes judicial notice of the existence of the documents, the Court declines to take judicial notice of the truth of statements contained in such documents. (*Fremont Indem. Co. v. Fremont General Corp.*, *supra*, 148 Cal.App.4th 97, 114.) [“The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable.”].)

C. Discussion

Azteca contends that Plaintiff’s claims against them are barred by the worker’s compensation exclusivity rule.

The Workers’ Compensation Act (Lab. Code, §§ 3600, 3602) extends to all injuries

suffered by an employee that arise out of and in the course of employment and bars an employee from seeking other remedies against her employer. The “trigger for workers’ compensation exclusivity is a compensable injury.” (*Charles J. Vacanti, MD, Inc. v. State Compensation Insurance Fund* (2001) 24 Cal.4th 800, 813.) An injury is compensable if it 1) arises within the course and scope of employment; and 2) causes personal injury or death. (*Id.*, at pp. 813-814; see also *Wright v. State of California* (2015) 233 Cal.App.4th 1218, 1229 [“Courts have consistently recognized the act’s two-pronged requirement: the injury must have arisen out of *and* occurred in the course of employment.”].) Whether an employee’s injury arose out of and in the course of employment is a question of fact determined by the circumstances of the case. (*Mason v. Lake Dolores Group* (2004) 117 Cal.App.4th 822, 830 [substantial evidence supported jury determination that water park employee was not acting in the course of employment when injured riding waterslide before park opened].)

The worker’s compensation system is based on the “compensation bargain” by which employers in California “assume[] liability for industrial personal injury or death without regard to fault in exchange for limitations on the amount of that liability. The employee is afforded relatively swift and certain payment of benefits to cure or relieve the effects of industrial injury without having to prove fault but, in exchange, gives up the wider range of damages potentially available in tort. [Citations.]” (*Shoemaker v. Myers* (1990) 52 Cal.3d 1, 16.)

The exclusive remedy rule, however, has its limitations and injuries arising in the course of employment may be distinguished:

First, there are injuries caused by employer negligence or without employer fault that are compensated at the normal rate under the workers’ compensation system. Second, there are injuries caused by ordinary employer conduct that intentionally, knowingly or recklessly harms an employee, for which the employee may be entitled to extra compensation under section 4553. Third, there are certain types of intentional employer conduct which bring the employer beyond the boundaries of the compensation bargain, for which a civil action may be brought.

(*Fermino v. Fedco, Inc.* (1994) 7 Cal.4th 701, 713-714 (*Fermino*).)

In determining whether the matter falls within an exception to the exclusive remedy rule, the primary consideration is whether the employer’s intentional conduct was beyond the risk of normal employment. (*Fermino, supra*, 7 Cal.4th 701, 714-715 [conduct is beyond the compensation bargain if it could not be considered a normal risk of employment (such as physical molestation) or is contrary to fundamental public policy].)

The fact that an employee receives a workers’ compensation award does not absolutely preclude the employee from seeking a different remedy; “the elements stated in Labor Code sections 3600, 3601, and 3602 determine whether the

exclusivity rule applies and the existence or nonexistence of an award is not one of those elements.” (*Lee v. West Kern Water Dist.* (2016) 5 Cal.App.5th 606, 637–638.)

There are also statutory exceptions set to the exclusive remedy rule set forth in Labor Code section 3602, subdivision (b):

(1) Where the employee’s injury or death is proximately caused by a willful physical assault by the employer.

(2) Where the employee’s injury is aggravated by the employer’s fraudulent concealment of the existence of the injury and its connection with the employment, in which case the employer’s liability shall be limited to those damages proximately caused by the aggravation. The burden of proof respecting apportionment of damages between the injury and any subsequent aggravation thereof is upon the employer.

(3) Where the employee’s injury or death is proximately caused by a defective product manufactured by the employer and sold, leased, or otherwise transferred for valuable consideration to an independent third person, and that product is thereafter provided for the employee’s use by a third person.

(Lab. Code § 3602, subd. (b).)

“When a complaint affirmatively alleges facts indicating coverage by workers’ compensation laws but fails to state additional facts negating the application of the exclusive remedy rule, no civil action will lie and the complaint is subject to a general demurrer. [Citation.]” (*Hughes v. Western MacArthur Co.* (1987) 192 Cal.App.3d 951, 957.)

The complaint is clear that Plaintiff was an employee of Azteca and was injured in the course and scope of his employment. Plaintiff alleges that at the time of the incident, Plaintiff was an employee of Azteca. (Cmp., ¶ 2.) Azteca supervised the job site and employed Plaintiff for the project. (*Id.*, ¶ 13.) “Despite the extremely dangerous, low-hanging, uninsulated power line, none of the Defendants posted warnings, signage, or cordoned off the area to limit access to it. Furthermore, AZTECA never held safety briefings or site walkthroughs with workers specifically identifying the power line. Thus, PLAINTIFF was never informed that the line was present or energized.” (*Id.*, ¶ 17.) “On or about November 15, 2023, after finishing work on the north side of the ADU, Plaintiff carried the ladder provided to him by AZTECA around the structure to reach the south side of the ADU.” (*Id.*, ¶ 18.) “As he did so the ladder contacted the uninsulated, energized line. PLAINTIFF was electrocuted and rendered unconscious for approximately five minutes...” (*Id.*, ¶ 19.) Azteca “had knowledge of the hazard, the authority to mitigate it, and the opportunity to prevent the incident.” (*Id.*, ¶ 21.)

Next, the Court must examine the allegations of the Complaint to determine whether it also states facts which negate the application of the Workers' Compensation Act. (*Doney v. Tambouratgis* (1979) 23 Cal.3d 91, 97 ["An exception to this general rule of pleading and proof by the defendant appears in the situation where the complaint affirmatively alleges facts indicating coverage by the act. Then, unless the complaint goes on to state additional facts which would negative the application of the act, no civil action will lie and the complaint is subject to a general demurrer. [Citation.]"].)

Plaintiff argues that the complaint alleges more than an ordinary workplace accident, and alleges "reckless, willful conduct and conscious disregard for human life and safety", and to the extent the Court concludes plaintiff must plead that Defendant's conduct falls within an exception to workers' compensation exclusivity that Plaintiff be granted leave to amend.

Although Plaintiff argues in his opposition that his claims fall outside of the workers' compensation exclusivity bargain, the complaint does not allege any such exception. Instead, Plaintiff's opposition argues that for all of the claims that "Azteca knew before the incident that a low-hanging, uninsulated, energized high-voltage line crossed the work area, knew workers would use ladders or tall equipment in that area, contacted PG&E to request that the line be raised or insulated, received no response, nevertheless proceeded with the job, failed to warn Plaintiff that the line existed or was energized, failed to conduct a safety briefing or site walkthrough, and failed to cordon off or mark the hazard. (Complaint, ¶¶ 15, 17-19, 24(b), 42.) The Complaint also alleges that Azteca's conduct was reckless, willful, and undertaken with conscious disregard for human life and safety. (Complaint, ¶¶ 28, 36, 45.)" (Opp., p. 10, ll. 25-28; p. 11, ll. 1-4.)

In sum, Plaintiff argues that Azteca's conduct takes Azteca out of worker's compensation exclusivity under the third type of conduct set forth in *Fermino*. (Opp., p. 11, ll. 5-10; see *Fermino, supra*, 7 Cal.4th 701, 714 ["Third, there are certain types of intentional employer conduct which bring the employer beyond the boundaries of the compensation bargain, for which a civil action may be brought."].)

Plaintiff fails to acknowledge, however, that "injuries caused by unsafe working conditions are compensable solely under workers' compensation, even if the employer recklessly or deliberately failed to correct known safety violations." (*Vuillemainroy v. American Rock & Asphalt, Inc.* (1999) 70 Cal.App.4th 1280, 1286.) In *Stalnaker v. Boeing Co.* (1986) 186 Cal.App.3d 1291, an employee was killed by unexploded ordnance on a range. The court of appeals affirmed the trial court's grant of summary judgment on the grounds of workers' compensation exclusivity. The allegations in that action were similar to those here:

The complaint's factual allegations were to the effect that BSI knew that unexploded ordnance lay beneath the range's surface, and that despite that knowledge and its awareness of the potential for death or injury, it sent Stalnaker onto the range, without any special training or protective clothing or apparatus that would prevent death or injury. The complaint also alleged that Stalnaker was not warned of the potential hazards of the range, and that BSI withheld this warning because it feared that if informed of the risk, no

employee would have performed the work.

(*Stalnaker v. Boeing Co.*, *supra*, 186 Cal.App.3d 1291, 1296.)

Regulatory crimes such as health and safety regulations are generally not actions that fall outside the normal course of employment. (*Fermino*, *supra*, 7 Cal.4th 701, 723, fn. 7; [stating “it is an expected part of the compensation bargain that industrial injury will result from an employer’s violation of health and safety, environmental and similar regulations”].)

Plaintiff cites no authority finding an exception to workers’ compensation exclusivity under facts similar to those present here. In fact, in *Arendell v. Auto Parts Club, Inc.* (1994) 29 Cal.App.4th 1261, 1265, the Court noted that “ ‘[t]he modern view respecting actionable intentional misconduct by the employer is that it must be alleged and proved that the employer “acted deliberately with the specific intent to injure” the employee.’ [Citation].” While Plaintiff alleges intentional acts and knowledge of their potential danger, along with a failure to warn, Plaintiff does not allege facts that could reasonably be interpreted to show a specific intent to injure Plaintiff or a belief that the consequences were certain to result.

Under the current law, the Court finds that Plaintiff’s claims against Azteca are barred by worker’s compensation exclusivity.

Azteca’s motion for judgment on the pleadings is granted with leave to amend.

ORDER

For the foregoing reasons, the motion is granted with leave to amend.

Plaintiff may file an amended complaint within twenty (20) days from service of the notice of ruling. Azteca is to serve the notice of ruling. (Code Civ. Proc., § 1019.5.)